Topic 11: International Criminal Law

LAWS2000/8015 International Law

1. **Pursuant to which legal instruments/mechanisms were the following international criminal tribunals established?**

   a. **The International Criminal Tribunal for the former Yugoslavia.**
   b. **The International Criminal Tribunal for Rwanda.**
   c. **The International Criminal Court (ICC).**

2. **Which States were mandated to cooperate with the *ad hoc* international criminal tribunals? Why?**

3. **In what circumstances are non-party States to the *Rome Statute of the International Criminal Court* ('*Rome Statute*') required to cooperate with the Court? What consequences might that entail for the ICC?**

4. **Applying Part 2 of the *Rome Statute*, discuss whether the ICC might have jurisdiction in the following hypothetical scenarios:**

   a. **Lionel Strong, a national of the Republic of Sirax, a party to the *Rome Statute* at the time of the acts in question, is accused of committing acts of piracy on board a vessel registered to Sirax.**

   b. **Corlis Valeron, a national of the Republic of Giskar, is accused of committing crimes against humanity in the Republic of Giskar, a non-party State to the *Rome Statute* at the time of the alleged acts. The United Nations Security Council refers the situation to the Prosecutor under Chapter VII of the *Charter of the United Nations*.**

   c. **Agon Megor, is accused of committing war crimes on the territory of the Republic of Ibbin, which became a State party to the *Rome Statute* after the acts in question.**

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